# Non-Disclosure Agreement

## Mutual Confidentiality Agreement

**Party 1 (Service Provider):** AISymmetric, LLC, a Minnesota limited liability company
**Party 2 (Client):** [CLIENT COMPANY NAME]
**Contact:** [FIRST NAME] [LAST NAME], [TITLE]
**Effective Date:** [EFFECTIVE DATE]

This Non-Disclosure Agreement ("Agreement") is entered into as of the Effective Date by and between AISymmetric, LLC and [CLIENT COMPANY NAME] (collectively, the "Parties"). Each party may act as a Disclosing Party or Receiving Party.

## 1. Confidential Information

For purposes of this Agreement, "Confidential Information" means any and all non-public, proprietary, or sensitive information disclosed by the Disclosing Party to the Receiving Party, whether orally, in writing, or electronically, including but not limited to:

- **Business plans, strategies, financial data, forecasts, and pricing information**
- **Customer and prospect lists, contact data, and relationship details**
- **Proprietary technology, software, source code, algorithms, and AI models**
- **Prompt architectures, automation workflows, and system configurations**
- **Marketing plans, product roadmaps, and operational processes**
- **Any other information a reasonable person would understand to be confidential given the nature and circumstances of disclosure**

## 2. Obligations of Receiving Party

Each Receiving Party agrees to:

- **Maintain confidentiality using at least the same degree of care used to protect its own confidential information, but no less than reasonable care**
- **Use Confidential Information solely for the purpose of evaluating and performing obligations under the applicable MSA or SOW**
- **Not disclose Confidential Information to any third party without prior written consent of the Disclosing Party**

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- **Limit access to employees and contractors on a strict need-to-know basis, bound by equivalent confidentiality obligations**
- **Promptly notify the Disclosing Party upon becoming aware of any unauthorized use or breach**

## 3. Exclusions

Confidential Information does not include information that:

- **Is or becomes publicly known through no breach of this Agreement**
- **Was rightfully known by the Receiving Party prior to disclosure without restriction**
- **Is independently developed by the Receiving Party without use of Confidential Information**
- **Is rightfully received from a third party without restriction on disclosure**
- **Is required to be disclosed by law or court order, provided the Receiving Party gives prompt written notice and cooperates in seeking a protective order**

## 4. Intellectual Property

Nothing in this Agreement grants either party any right, title, license, or interest in the other party's Confidential Information or intellectual property, except as expressly set forth in a separate written agreement. All Confidential Information remains the exclusive property of the Disclosing Party.

## 5. Term & Survival

Obligations under this Agreement commence on the Effective Date and survive for three (3) years following termination of the applicable Master Services Agreement, or indefinitely with respect to information constituting trade secrets under applicable law.

## 6. Return or Destruction

Upon written request or termination of the applicable MSA, the Receiving Party shall:

- **Return all tangible materials containing Confidential Information, or**
- **Certifiably destroy all such materials and any copies thereof**

Written certification of destruction shall be provided within ten (10) business days upon request.

## 7. Remedies

Each party acknowledges that breach of this Agreement may cause irreparable harm for which monetary damages would be inadequate. Accordingly, the Disclosing Party shall be entitled to seek equitable relief, including injunction and specific performance, in addition to all other remedies available at law or in equity.

## 8. Non-Solicitation

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During the term and for twelve (12) months following termination, neither party shall directly solicit or hire employees, contractors, or clients of the other party who were introduced through the course of this engagement, without prior written consent.

## 9. Non-Circumvention

The Receiving Party agrees not to circumvent, avoid, or bypass the Disclosing Party's interest in any transaction or business opportunity introduced through this engagement. Introductions to AISymmetric, LLC's clients, partners, or vendors are proprietary and shall not be leveraged for independent commercial benefit without prior written consent.

## 10. Governing Law & Dispute Resolution

This Agreement shall be governed by the laws of the State of Minnesota. Disputes shall be resolved through good-faith negotiation for thirty (30) days, then binding arbitration in Hennepin County, Minnesota, under AAA rules. The prevailing party shall recover reasonable attorneys' fees and costs.

## 11. Entire Agreement

This Agreement constitutes the entire agreement between the parties with respect to confidentiality and supersedes all prior discussions relating thereto. Amendments must be in writing and signed by both parties.

## Signatures

IN WITNESS WHEREOF, the parties have executed this Non-Disclosure Agreement as of the Effective Date.

| **Service Provider** | **Client** |
|---|---|
| Name: Tyler Perleberg | Name: [FIRST NAME] [LAST NAME] |
| Title: Founder & CEO | Title: [TITLE] |
| Company: AISymmetric, LLC | Company: [CLIENT COMPANY NAME] |
| Signature: _____ | Signature: _____ |
| Date: _____ | Date: _____ |

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